

Pappu Sharma v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 8 June 2015 · Writ-C No. 34410 of 2015 · Writ-C No. 34410 of 2015 · **Writ dismissed; billing grievance relegated to Supply Code authority.**

HEADNOTE

A writ whose pith and substance is a challenge to the validity and correctness of an electricity bill is not to be entertained; the consumer must approach the authority under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Pappu Sharma and another invoked the writ jurisdiction of the Allahabad High Court against U.P. Power Corporation Ltd. and two others, questioning an electricity bill raised against them. Counsel for the petitioners were Pravesh Kumar and Anil Kumar Shukla; the Corporation was represented by Baleshwar Chaturvedi. The Division Bench of V.K. Shukla and Pratyush Kumar JJ. heard the matter at Court No. 32 on 8 June 2015.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

billing-grievance

HOLDING

Where a writ petition in pith and substance questions the validity and correctness of an electricity bill, the U.P. Electricity Supply Code, 2005 furnishes the forum; the consumer must approach the authority concerned, and the High Court will not entertain the writ. ¶ 1

FLAG Court cited the Supply Code generally, without a clause number.

PRINCIPLE TAGS

relegate-to-statutory-remedy A writ whose pith and substance is a challenge to the validity and correctness of an electricity bill is not to be entertained; the consumer must approach the authority under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY AND CORRECTNESS OF THE ELECTRICITY BILL

Writ not entertained on the merits; petitioners directed to the authority under the Supply Code. ¶ 1